

24STCV34286 24STCV34286

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-25

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Case Number: 24STCV34286 Hearing Date: August 25, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

25, 2026 TRIAL

DATE: February 16, 2027

CASE: Sameen Naqvi v. Volkswagen Group of America, Inc., et al.

CASE NO.: 24STCV34286

DEFENDANTS

VOLKSWAGEN GROUP OF AMERICA, INC. AND AUDI FLETCHER JONES' MOTION TO STRIKE
PUNITIVE DAMAGES

I. BACKGROUND

This

is a lemon law action. On May 2, 2025, Plaintiff, Sameen Naqvi, filed the operative First Amended Complaint ("FAC") against Defendants, Volkswagen Group of America, Inc. and Audi Fletcher Jones for Song-Beverly violations, negligent repair, and fraudulent inducement – concealment. Plaintiff seeks punitive damages in connection to the fraud claim.

On June 8, 2026, Defendants filed a motion for judgment on the pleadings and a motion to strike punitive damages allegations from the FAC. The motion for judgment on the pleadings was noticed for July 21, 2026. The motion to

strike was noticed for August 25, 2026.

On July 21,
2026, the court granted the motion for judgment on the pleadings, in relevant part, as to the fraud claim without leave to amend.

On August 12, 2026, Plaintiff filed an opposition to the motion to strike.

On August 18,
2026, Defendants filed a reply.

II. DISCUSSION

The parties spar over the timeliness of the motion.^[1] However, the arguments are ultimately irrelevant. Given the court's ruling on Defendants' motion for judgment on the pleadings of the fraud cause of action, there is no other viable cause of action which remains that could support an award of punitive damages Civil Code section 3294.

III. CONCLUSION

The motion to strike is MOOT.

Defendant to give notice, unless waived.

Dated: August 25, 2026

Brock T. Hammond

Judge of the Superior Court

[1] For the record, Plaintiff is correct. Generally, a party may file a motion to strike within the time allowed to respond to a pleading. (Code Civ. Proc., § 435(b)(1).) Here, Defendants filed the motion to strike well beyond the statutory period. Defendants argue the motion is timely pursuant to Code of Civil Procedure section 435(e) but Defendants misread the relevant statutory provisions. "A motion to strike, as specified in this section, may be made as part of a motion pursuant to subparagraph (A) of

paragraph (1) of subdivision (i) of Section 438.” (Code Civ. Proc., § 435(e).) Subparagraph (A) of paragraph (1) of subdivision (i) of Section 438 allows a motion to strike when a motion for judgment on the pleadings is granted with leave to amend and the amended pleading is filed after the time to file has expired or that the pleading is in violation of the court's prior ruling on the motion. Neither of those circumstances are implicated here.